

Regarding fixation of pension of employees retiring/retired on 30th June, considering the notional increment as on the immediately following 1st July.

GOVERNMENT OF MAHARASHTRA

Persons with Disabilities Welfare Department,

Government Circular No.: EDD-2023/C.R.147/D. K. 1

39/32/35 "A" Wing, Mittal Tower, Barrister Rajni Patel Marg, Nariman Point, Mumbai-400 021.

Date: 16 January, 2024.

Read:

1. Order dated 16.02.2023 of the Hon'ble Bombay High Court, Aurangabad Bench, in Writ Petition No. 1881/2023 and other petitions.
2. Government Circular, Finance Department No.: Vetan 2023 / C.R. 13 / Seva-3, Date: 28 June, 2023.

Government Circular :-

In pursuance of the order dated 16th February, 2023 passed by the Hon'ble High Court, Bench at Aurangabad in Writ Petition No. 1881/2023 and other petitions, directions have been issued vide Finance Department Circular under Reference No. 2 above instructing all Ministry Administrative Departments to inform the Heads of Departments in their subordinate offices to appeal to all concerned retirees who retired on 30th June after rendering qualifying service for the preceding 12 months, to submit applications to the respective offices for revising their pension by considering the notional increment as on 01st July. Similarly, directions have also been issued through the said circular that after receiving such applications, the concerned offices, while granting revised pensionary benefits to the concerned persons as mentioned in the order under Reference No. 1 above of the Hon'ble High Court, Bench at Aurangabad, shall pay arrears for a period of preceding 3 years from the date of filing the application or from the date of their retirement, whichever is less, and that no application of any retiree fulfilling the guidelines laid down by the Hon'ble High Court shall be rejected.

2. Therefore, in pursuance of the above-mentioned Circular dated 28th June, 2023 of the Finance Department, the increment as on 1st July is also being made admissible to those employees / officers in Special Schools / Workshops for Persons with Disabilities / Homes for Intellectually Disabled Children who have retired on 30th June or will retire in the future. The Commissioner, Persons with Disabilities Welfare, Pune is hereby informed to bring this to the notice of Special Schools / Workshops for Persons with Disabilities / Homes for Intellectually Disabled Children in the State from his level and issue directions to take appropriate action as per the referenced Government Circular.

3. This Government Circular is being issued in accordance with the approval granted vide Finance Department's Unofficial Reference No. 444/(Seva-3), dated 22nd November, 2023.

4. This Government Circular has been made available on the website of the Government of Maharashtra www.maharashtra.gov.in and its computer code number is 202401181159141835. Also, this Government Resolution is being issued with digital signature.

By order and in the name of the Governor of Maharashtra,

(V. P. Ghodke)

Deputy Secretary, Government of Maharashtra

Copy to:

1. Commissioner, Persons with Disabilities Welfare, Pune,
2. All Regional Deputy Commissioners, Social Welfare,
3. Under Secretary, Desk Seva-3, Finance Department, Mantralaya, Mumbai 400 032,
4. All Social Welfare Officers, Zilla Parishad,
5. Assistant Commissioner, Mumbai City / Mumbai Suburban,
6. Select File.